

to Donnithorne, Griffith, and Symonds, upon certain trusts. On 12th January, 1791, the mortgage was paid off and the estate re-conveyed, and a joint receipt signed, and the money, with the approbation of the co-trustees, was put into the hands of Donnithorne. The money was shortly afterwards invested by Donnithorne, with the sanction of his co-trustees, in bills or notes of the East India Company payable at the end of two years. In 1793 the bills were paid off by the Company, and the money received by Donnithorne. Intelligence to that effect having been transmitted to the co-trustees, Symonds the same year wrote to Donnithorne requesting him to invest it in the public funds in the joint names of the trustees. Donnithorne begged that the money might remain in his hands, and proposed to secure the repayment of it by a mortgage from himself and his son of their settled estates in Cornwall, and, until the mortgage could be prepared, to secure it by their joint bond. The co-trustees, conceiving the security to be ample, expressed their consent, and the joint bond was accordingly executed. Donnithorne not having sent the mortgage as he promised, Symonds made several applications to him upon the subject, earnestly desiring him either to invest the money in the funds, or to give them landed security. In September, 1796, Donnithorne died insolvent, and without having executed the mortgage. Sir W. Grant observed, "The money in 1791 was paid in without any act of the trustees: they were obliged to receive it: so far they were blameless. It came to Donnithorne's hands, and *the trustees were not to blame in letting it come to his hands*; but they might have afterwards made themselves responsible by merely not doing what was incumbent on them; by permitting the money to *remain* a considerable time in the hands of their co-trustee they might, without any positive act on their part, have made themselves liable. That will depend on the degree and extent of their *laches* in suffering the money to remain in the hands of Donnithorne. The trustees being authorised to put the money out on mortgage, it would be rather hard to say that they were guilty of *laches* by giving Donnithorne a little time to find a mortgage, taking his